

Equality Act 2010 (c. 15): Structured Reference

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Corpus role: Shared legislation — all 3 typology indices

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Structured reference extract for use as corpus ground-truth. The **canonical full text** is authoritative: - Revised contents: <https://www.legislation.gov.uk/ukpga/2010/15/contents> - Official King's Printer full-text PDF: https://www.legislation.gov.uk/ukpga/2010/15/pdfs/ukpga_20100015_en.pdf - Explanatory Notes: <https://www.legislation.gov.uk/ukpga/2010/15/notes/contents>

Long title (official)

An Act to reform and harmonise equality law and restate the greater part of the enactments relating to discrimination and harassment related to certain personal characteristics; to prohibit victimisation in certain circumstances; to require the exercise of certain functions to be with regard to the need to eliminate discrimination and other prohibited conduct; to increase equality of opportunity; and for connected purposes.

Protected characteristics (Part 2, Chapter 1)

The Act protects nine characteristics. Those most relevant to the LPA system's harm typologies are:

- **Race** (s.9) — includes colour, nationality, and ethnic or national origins. This single characteristic spans the system's *race/ethnicity* and *national-origin* typologies; "national origins" is the statutory hook for national-origin-targeted hostility.
- **Religion or belief** (s.10) — any religion, any religious or philosophical belief, and a lack of religion or belief. This anchors the system's *religion/belief* typology.

The remaining characteristics are age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, sex, and sexual orientation.

Prohibited conduct (Part 2, Chapter 2)

The forms of prohibited conduct that map onto online hostility are:

- **Direct discrimination (s.13)** — treating someone less favourably because of a protected characteristic.
- **Indirect discrimination (s.19)** — a provision, criterion or practice that puts people sharing a protected characteristic at a particular disadvantage and is not a

proportionate means of achieving a legitimate aim. Relevant to systemic, implicit, and "neutral-seeming" framings.

- **Harassment (s.26)** — unwanted conduct related to a protected characteristic that has the purpose or effect of violating a person's dignity, or creating an intimidating, hostile, degrading, humiliating or offensive environment. The "purpose or effect" test, and the requirement to take account of the perception of the recipient, the other circumstances, and whether it is reasonable for the conduct to have that effect, are central to assessing whether content directed at a community member constitutes harassment.
- **Victimisation (s.27)** — subjecting someone to a detriment because they have done (or are believed to have done) a protected act, such as making or supporting a discrimination complaint. Relevant to retaliation against community members who challenge hostile content.

Public sector equality duty (s.149)

Public authorities, and those exercising public functions, must in the exercise of their functions have due regard to the need to eliminate discrimination, harassment and victimisation; advance equality of opportunity; and foster good relations between people who share a protected characteristic and those who do not. This duty is the legal backdrop against which civic organisations and public-facing partners operate, and underpins the legitimacy of community-led moderation support.

How this anchors the LPA corpus

In the retrieval corpus, the Equality Act grounds: (1) the protected-characteristic vocabulary that defines each harm typology (race/national origins under s.9; religion or belief under s.10); (2) the **harassment** standard (s.26), whose "purpose or effect" and recipient-perception tests give a legal frame for distinguishing genuine harm from robust-but-lawful speech in the incoming branch; and (3) the victimisation concept (s. 27) relevant to protecting members who speak up. It complements the Online Safety Act: the OSA defines platform duties and illegal-content thresholds, while the Equality Act defines the substantive discrimination and harassment concepts the content offends against. It applies across all three typology indices.

Statutory text — verbatim extracts

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Section 9 — Race

(1) Race includes— (a) colour; (b) nationality; (c) ethnic or national origins.

(2) In relation to the protected characteristic of race— (a) a reference to a person who has a particular protected characteristic is a reference to a person of a particular racial group; (b) a reference to persons who share a protected characteristic is a reference to persons of the same racial group.

(3) A racial group is a group of persons defined by reference to race; and a reference to a person's racial group is a reference to a racial group into which the person falls.

(4) The fact that a racial group comprises two or more distinct racial groups does not prevent it from constituting a particular racial group.

(Subsections (5)–(6) confer a power on a Minister to amend the Act so as to provide for caste to be an aspect of race.)

Section 10 — Religion or belief

(1) Religion means any religion and a reference to religion includes a reference to a lack of religion.

(2) Belief means any religious or philosophical belief and a reference to belief includes a reference to a lack of belief.

(3) In relation to the protected characteristic of religion or belief— (a) a reference to a person who has a particular protected characteristic is a reference to a person of a particular religion or belief; (b) a reference to persons who share a protected characteristic is a reference to persons who are of the same religion or belief.

Section 13 — Direct discrimination

(1) A person (A) discriminates against another (B) if, because of a protected characteristic, A treats B less favourably than A treats or would treat others.

(5) If the protected characteristic is race, less favourable treatment includes segregating B from others.

(Subsections (2)–(4) and (6) make special provision for age, disability, marriage and civil partnership, and sex respectively; subsection (7) was omitted in 2024; subsection (8) makes the section subject to sections 17(6) and 18(7).)

Section 19 — Indirect discrimination

(1) A person (A) discriminates against another (B) if A applies to B a provision, criterion or practice which is discriminatory in relation to a relevant protected characteristic of B's.

(2) For the purposes of subsection (1), a provision, criterion or practice is discriminatory in relation to a relevant protected characteristic of B's if— (a) A applies, or would apply, it to persons with whom B does not share the characteristic, (b) it puts, or would put, persons with whom B shares the characteristic at a particular disadvantage when compared with persons with whom B does not share it, (c) it puts, or would put, B at that disadvantage, and (d) A cannot show it to be a proportionate means of achieving a legitimate aim.

(3) The relevant protected characteristics are— age; disability; gender reassignment; marriage and civil partnership; race; religion or belief; sex; sexual orientation.

Section 26 — Harassment

(1) A person (A) harasses another (B) if— (a) A engages in unwanted conduct related to a relevant protected characteristic, and (b) the conduct has the purpose or effect of—

(i) violating B's dignity, or (ii) creating an intimidating, hostile, degrading, humiliating or offensive environment for B.

(4) In deciding whether conduct has the effect referred to in subsection (1)(b), each of the following must be taken into account— (a) the perception of B; (b) the other circumstances of the case; (c) whether it is reasonable for the conduct to have that effect.

(5) The relevant protected characteristics are— age; disability; gender reassignment; race; religion or belief; sex; sexual orientation.

(Subsections (2)–(3) extend harassment to unwanted conduct of a sexual nature and to less favourable treatment for rejecting or submitting to such conduct.)

Section 27 — Victimisation

(1) A person (A) victimises another person (B) if A subjects B to a detriment because—

(a) B does a protected act, or (b) A believes that B has done, or may do, a protected act.

(2) Each of the following is a protected act— (a) bringing proceedings under this Act;

(b) giving evidence or information in connection with proceedings under this Act; (c) doing any other thing for the purposes of or in connection with this Act; (d) making an allegation (whether or not express) that A or another person has contravened this Act.

(3) Giving false evidence or information, or making a false allegation, is not a protected act if the evidence or information is given, or the allegation is made, in bad faith.

(4) This section applies only where the person subjected to a detriment is an individual.